

STATE OF NEW YORK

6959--A

2025-2026 Regular Sessions

IN SENATE

March 27, 2025

Introduced by Sens. HINCHEY, BROUK -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- recommitted to the Committee on Health in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to notice of adult care facility closure requirements

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The social services law is amended by adding a new section
2 461-v to read as follows:

3 § 461-v. Closure of adult care facilities. 1. In the event that the
4 department revokes or suspends or intends to revoke or suspend or other-
5 wise limit the operating certificate for an adult care facility, the
6 following shall apply:

7 (a) The department shall provide copies of all written materials
8 pertaining to the action including, but not limited to, the hearing
9 notice and notice of charges served upon the operator of such facility
10 to the governor, the office of the state comptroller, the office of the
11 New York state attorney general, the justice center for the protection
12 of people with special needs, and the members of the state assembly and
13 the state senate representing the municipality in which the facility is
14 located.

15 (b) Copies of all written materials shall also be concurrently deliv-
16 ered to the chief executive officer and the presiding officer of the
17 local legislative body of each county, except a county wholly contained
18 within a city, town or village in which the facility is located and, in
19 a city with a population of one million or more, also to the community
20 board in whose district the facility is located.

21 (c) During the thirty-day period prior to the hearing date, the
22 department shall post on its website:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (i) a summary of the violations at the adult care facility;
2 (ii) an explanation of the groups or individuals likely to be impacted
3 by the closure; and
4 (iii) a summary of the facility operator's plan to ensure continued
5 care for all residents to be impacted.

6 2. Except as provided in paragraph (c) of subdivision one of this
7 section, the written materials provided in subdivision one of this
8 section shall not be subject to disclosure under article six of the
9 public officers law. Such written materials shall not include any indi-
10 vidual identifying information.

11 3. In the event that an adult care facility surrenders its operating
12 certificate, the department shall provide a copy of such facility's
13 closure plan and a copy of all written materials in its possession
14 pertaining to such closure to all the parties listed in paragraphs (a)
15 and (b) of subdivision one of this section. Such written materials shall
16 not be subject to disclosure under article six of the public officers
17 law and shall not include any identifying information.

18 § 2. This act shall take effect on the first of April next succeeding
19 the date on which it shall have become a law and shall apply to all
20 closures of adult care facilities occurring on or after such effective
21 date and to all closures of adult care facilities pending on and after
22 such effective date. Effective immediately, the addition, amendment
23 and/or repeal of any rule or regulation necessary for the implementation
24 of this act on its effective date are authorized to be made and
25 completed on or before such effective date.